



DEPARTMENT OF THE NAVY
MID-ATLANTIC REGIONAL MAINTENANCE CENTER
9727 AVIONICS LOOP
NORFOLK VA 23511-2124

J&A No. N50054-25-110
Code 415
P.R.: N50054BARGES 2019

JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity.

The Naval Sea Systems Command, Mid-Atlantic Regional Maintenance Center, Contracts Division, Code 415.

2. Description of the Action Being Approved.

Mid Atlantic Regional Maintenance Center (MARMC) intends to modify the Firm-Fixed Price, Multiple Award Indefinite Delivery/Indefinite Quantity (MAC-IDIQ) Contracts N50054-20-D-0001 (Lyon Shipyard, Inc.), N50054-20-D-0002 (BMFT, N, LLC), N50054-20-D-0003 (Colonna's Shipyard, Inc.), N50054-20-D-0004 (Fairlead Boatworks, Inc.), and N50054-20-D-0005 (East Coast Repair and Fabrication, LLC). These MAC-IDIQ's are currently in their fourth option period with a period of performance of [REDACTED]

The aforementioned MAC-IDIQ's were originally awarded with a shared period of performance of [REDACTED] On [REDACTED] a modification was executed to increase the shared ceiling in Section H by [REDACTED] for a total of [REDACTED] On [REDACTED] another modification was executed to increase the shared ceiling in Section H by [REDACTED] for a total of [REDACTED]

Currently, a competitive procurement for a follow-on contract is in process. However, due to the complexity of this requirement, base contracts will not be awarded prior to the current value of the ceiling being exceeded. The follow-on contract is currently out for solicitation with an expected award date in [REDACTED] Therefore, a contract modification is required to increase the shared cumulative ceiling.

3. Description of Supplies/Services.

The proposed action on this supply contract will provide Barge Support for the duration of the Option IV period of performance of [REDACTED] utilizing the current contract terms and conditions. The MAC-ID IQ contracts listed above provide a full range of depot level troubleshooting, repair, renewal, refurbishment, modernization, maintenance, and testing onboard the U.S Navy Messing and Berthing Barges Fleet. The value for this modification is estimated to be [REDACTED] and the total shared ceiling of [REDACTED] This estimate is in line with the funds utilized during previous one-year periods under this MAC-IDIQ.

Operations and Management, Navy Funding will be utilized in support of this proposed contract action. The certifying technical and requirements personnel have verified the Government's minimum needs.

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 3204(a)(2), Unusual and compelling urgency.

5. Rationale Justifying Use of Cited Statutory Authority.

In accordance with FAR 6.302-2(a)(2), full and open competition need not be provided for when the agency's need is of such unusual and compelling urgency that the Government would be seriously injured. This requirement supports the use of the authority cited in 10 U.S.C. 3204(a)(2) because significant interruption to the barge maintenance program would occur if not permitted to extend the period of performance of the Multiple Award IDIQ Contracts.

Since the previous ceiling increase, repairs have been more frequent, urgent, and therefore, costly to support the Navy's mission to improve the quality of life for sailors while living onboard the Messing and Berthing Barges. Emergent repairs have been required to stop overflowing CHT Tanks, repair and replace necessary kitchen equipment to feed sailors living onboard, and urgent repairs to air conditioning systems onboard multiple barges.

The Messing and Berthing Barges are essential to support mission critical combatants during their availabilities for repair, maintenance, and modernization. Delaying repairs to the Messing and Berthing Barges will directly interfere with their ability to support availabilities. This will in turn cause delays to significant availabilities that will have a negative impact on the Navy's mission to be wartime ready. If the barges are not repaired in a timely manner, it can further degrade the condition of the barges. Living conditions onboard a Messing and Berthing Barge will continue to decline the longer a Barge is left unrepaired or unmaintained. Therefore, if the maintenance schedule of a Barge is neglected, the quality of life for sailors living onboard these Barges will drastically decline.

Without extending the period of performance, the lack of contractual coverage would force requiring activities to contract for support on an ad hoc basis. This would result in significant delays in response times and potentially cause irreparable harm to national interests. Stand-alone contracts on an ad hoc basis would not support the barge program due to the number of requirements processed. Under the current MAC-IDIQ, there is an average of 30 delivery orders processed each year ranging from \$300K to \$12M, depending on the complexity of the requirement.

There are currently five (5) major overhauls required on the following messing and berthing barges listed below with their estimated values:



The table above does not encompass the sustainment availabilities that are currently scheduled for the Messing and Berthing Barges Fleet. However, the dollar value of the above listed barge maintenance availabilities is far greater than the dollar threshold that is remaining on the current contract ceiling. Along with the major Barge Maintenance Availabilities listed above, there is scheduled sustainment contracts as well as emergent work that must be considered when formulating the ceiling increase dollar value.

The lead time to procure a Messing and Berthing Barge requirement as a stand-alone contract would take 120 to 220 days. In comparison, the lead time for competing these requirements under the current MAC-IDIQ utilizing FAR Part 16 takes approximately 30 to 45 days. The amount of time and effort to award a requirement as a stand-alone contract would cause extreme delays in barge schedule effecting support for ship repair. These barges are essential to support mission critical combatants during their availabilities for repair, maintenance, and modernization.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

A follow-on contract is currently being re-competed by MARMC. Furthermore, by extending the period of performance of the current Contract, delivery orders will be competed amongst the five (5) MAC-IDIQ holders under the current contract's terms and conditions.

7. Determination of Fair and Reasonable Cost. The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

In accordance with FAR 6.303-2(a)(7), the Contracting Officer has determined that the anticipated cost to the Government for the supplies/services covered by this J&A is determined to be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

MARMC will continue to compete the Messing and Berthing Barges Support MAC-IDIQ every five years. MARMC intends to have a new five-year MAC-IDIQ Contract vehicle in place by . An extension to the shared period of performance of the current contract is essential to maintain continued support until the follow-on contract is awarded. It is MARMC's intent to competitively award the follow-on contract with multiple awards being made to promote competition at the Delivery Order level. Under the current contract, competition will remain intact through the issuance of delivery orders and providing fair opportunity in accordance with FAR 16.505 to all five (5) contractors on the current MAC-IDIQ.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

